

**S.B. CIVIL MISC. APPEAL NO.869/2006**  
**(Anil Kumar Vs. Om Prakash @ Khuma & anr.)**

DATED : 13.09.2006

**HON'BLE MR. JUSTICE DINESH MAHESHWARI**

Mr.B.L.Choudhary for  
Mr.J.R.Beniwal for the appellant

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Having heard learned counsel for the claimant-appellant and having scanned through the entire record, this Court is satisfied that the award made by the Tribunal in the sum of Rs.37,207/- in favour of the appellant for the loss suffered by him due to the vehicular accident remains not lesser than that of just compensation and there being no scope for enhancement this appeal deserves to be dismissed without being admitted.

On 25.07.2003 at about 4.35 p.m. the claimant-appellant, about 42 years in age, while riding his motorcycle bearing registration No. RJ 30 2M 8654 was hit by on-coming motorcycle bearing registration No. RJ 30 1M 2539 near J.K. Circle By-pass at Rajnagar, District Rajsamand and sustained injuries. The appellant claimed compensation in the sum of Rs.6,27,000/- stating his monthly income at Rs.15,000/- and his having suffered 25% permanent disablement leading to reduction in his working capacity. After framing of necessary

issues and taking evidence, the Tribunal has found that the accident occurred for rash and negligent driving of the aforesaid motorcycle RJ 30 1M 2539 by its driver; and that the appellant sustained various injuries including fracture at lower end of radius bone; and held the non-applicants, driver and registered owner of the offending vehicle, liable for compensation. While quantifying compensation, the Tribunal has accepted the case of the appellant that he remained on leave for 58 days without pay on the basis of leave application Ex.24; and with reference to his tax return Ex.28 has taken his monthly income at Rs.12,647/- and has allowed Rs.24,450/- towards loss of income for 58 days. The Tribunal has further allowed Rs.1,000/- towards simple injuries and Rs.5,000/- towards grievous injuries; Rs.1,000/- towards transportation as the claimant was treated at Bhilwara; Rs.1,000/- towards special diets; Rs.200/- for an attendant for two days of hospitalisation; Rs.2,000/- towards non-pecuniary loss with reference to 5% permanent partial disablement of wrist; and Rs.2,557/- towards treatment expenditure on the basis of the bills produced. The Tribunal has further allowed interest at the rate of 6% per annum from the date of filing of claim application.

The Tribunal has allowed the amount of compensation rather liberally. The case of 5% permanent partial disablement

does not inspire confidence particularly with reference to the medical examination report Ex.9. The accident in question occurred on 25.07.2003 and the said examination had been carried out on 22.08.2004 whereas the claim application was filed on 02.12.2003; and the claimant-appellant chose to state in the application of his having suffered 25% disablement without any basis. The report Ex.9 states that the claimant was complaining of 'pain movement of right wrist' and the medical officers have reported on examination that 'movement of right wrist is painful, with range of motion limited at extremity of range'; and on the aforesaid observations, 5% permanent physical impairment and loss of function of wrist has been reported. The X-Ray report Ex.4 states about fracture of lower end of radius. However, the nature, extent and gravity of such fracture are not established on record and the relevant X-Ray plates have not been produced. On the basis of the medical examination report aforesaid, it is difficult to accept a case of 5% permanent partial disablement. The amount of Rs.2,000/- awarded towards non-pecuniary loss in this case seems unjustified particularly when Rs.5,000/- have already been allowed towards grievous injury.

The claim for loss of income of about two months also appears exaggerated but the Tribunal has allowed Rs.24,450/- therefor with reference to the last tax return of the appellant

although the leave application Ex.24 does not make out as to whether such leave was sanctioned or not. The Tribunal has also allowed Rs.1,000/- towards transportation, another Rs.1,000/- towards special diet and Rs.200/ for attendant for two days of hospitalisation. Only the unsigned bill and receipts Ex. 12,13 and 18, in all for Rs. 98/-, have been disallowed in the claim towards treatment expenditure and else, sum total of all other bills at Rs. 2,557/- has been allowed.

On all the counts, the Tribunal has leniently allowed compensation to the appellant and the award made by the Tribunal cannot be said to be inadequate or falling short of the amount of just compensation admissible in this case and there is no scope for upward revision.

The appeal fails and is, therefore, dismissed summarily.

(DINESH MAHESHWARI),J.

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